ANDOVER CHARTER REVISION COMMISSION
REVISED DRAFT REPORT
JULY 11, 2024

In satisfaction of the requirements of State law governing Charter Revision, namely, the Connecticut Home Rule Act, General Statutes section 7-187, et seq., including any action taken by the Charter Revision Commission (CRC) in response to public input, this **DRAFT REPORT** is submitted for consideration by the Board of Selectmen.

Note that words not underlined or stricken below appear in the Charter as currently written and are provided in certain places as context for proposed revisions. Wording underlined in blue is **proposed** to be added to the Charter as revisions. Wording or any referenced section that is stricken in red is proposed to be **deleted** from the Charter.

Section 105. Definitions.

H. "Minor Ordinance". ~~shall mean those ordinanaces that are nesssarv to enswre the orderly day to *day maintenance* of the order of the Town. Such ordinances are intended to inter alia: the setting of Speed limits on Town reads, the hours of operation for Town facilities and offices.~~

Any ordinance enacted as a "Minor Ordinance" prior to the deletion of this general provision on the effective date of the November 5, 2024 Charter Revision amendments shall continue to remain in place and effective unless and until it is thereafter repealed or amended by the Board of Selectmen.

Significance:

"without" a town vote the BOS could repeal and/or amend any ordinance." The BOS can repeal or amend any ordinance at a BOS meeting followed by a Public Hearing. There is a process to do this, but it eliminates the ordinance being automatically brought to a Town Meeting.

Example: If BOS wants to change Taxes to collected Annually or Bi-Annually they can do so

Section 203. Town Officers - General Election

A. Beginning on November 2, 2027 and continuing every four years thereafter. in the biennial municipal election to be held on the first Tuesday after the first Monday in, November. 4999 per section 1012 of this Charter there shall be elected a Board of Selectmen consisting of five (5) members which members shall serve four(4) year terms. A political party may nominate no more than three members, one of whom shall be the designated nominee for the Office of First Selectman.

B. (Section 203B regarding election of a Town Clerk is repealed in its entirety and replaced as follows):

Pursuant to the option set forth in General Statutes section 9-185. as fully set forth In the below Charter Section 7020, beginning with the November 2, 2027 election, the Town Cierk shall no longer be elected,

Significance: Town Clerk is no longer an elected position and will be appointed by the BOS/Town Manager.
Issue: The town clerk will no longer be autonomous and will answer directly to the Town Mgr.

Key Differences Between an Appointed Clerk and Elected Clerk

Appointed clerks:

1. Do NOT have to be town residents.
2. Have their qualifications, job descriptions, and wages/benefits set by the town board as they are essentially town employees hired by the board.
3. Cannot be removed by the board during their term of office, unless there is "cause" for removal (misconduct in office or neglect of duties). The board can simply choose not to re-appoint an official at the end of his or her term without having to establish cause.
4. Can be appointed for a term not to exceed 3 years at one time. Can be appointed for a shorter term such as six months or one year or whatever the board deems appropriate.

Elected clerks:

1. Must be town residents.
2. Answerable to the electorate and cannot be required by the board to hold specific qualifications or obtain training (unless required by state law-such as election training for clerks).
3. Can be recalled from office like other elected officials, but cannot be removed from office by a board vote.
4. Are elected for two year terms at the spring election in odd-numbered years.

C. At the biennial municipal election to be held on the first Tuesday after the first Monday in M-ay November, 2025, and every two years thereafter, there shallbe elected members to the following Boards, commissions and agencies for the terms specified herein. (The remainder of section 203C shall remaln 'in place verbatim)

D. All terms of office, except as otherwise provided in this Charter, shall commence on the ~~first~~ third Tuesday after the first Monday of ~~July~~ November. Elected Town officials shall hold office until their successors have been chosen and qualified.

Section 210 - Early Voting

The dates and hours for Early Voting shall be conducted as prescribed by the Connectia.it Genera! Statutes, as amended.

CHAPTER III- THE TOWN MEETING
Section 301- General

The legisiative authority of the Town shall be shared by the Board of Selectmen and the Town Meeting. The Town Meeting shall have authority for final approval of those actions of the Town as hereinafter enumerated in ~~Section 304, shall be the legislative body of the Town~~
~~The Town Meeting~~ Board of Selectmen shall have legislative authority for all matters not specifically enumerated hereafter in Section 304, including but not limited to the authority to approve and enact, repeal and modify all ordinances after a public hearing, and also those powers enumerated in Section 402, and those powers formerly assigned to the Town Meeting per Section 304D of this Charter.

Significance: Takes AUTHORITY AWAY from Andover citizens to vote in Town Meetings and give directly to the BOS.

ARTICLE TENTH OF HOME RULE.
Sec. 1.1 The general assembly shall by general law delegate such legislative authority as from time to time it deems appropriate to towns, cities, and boroughs relative to the powers, organization, and form of government of such political subdivisions.

Section· 301A- Elector Authority to Repeal any Ordinance Leglslatively Enacted by the Board of Selectmen

1 Any action of the Board of Selectman to enact, repeal or modify anv ordinance, except any emergency ordinance enacted per Section 406 of this Charter, shall be subiect to being repealed by wav of a special referendum in the following manner:
The Board of Selectmen shall send a written Town-wide mailer promptly notifving the Town electorate in detail of any such legislative action by the Board. The mailer shall be sent to the Office of the Town Clerk where the date-of its receipt shall be noted on the public record.

1. To seek repeal of any such legisiative action by the Board of Se!ectmen, **a petition must be filed with the Office of the Town Clerk within twenty (20) davs after official receipt** by the Office of the Town Clerk of the Town-wide mailer from the Board of Selectmen, To be valid, any such petition m**ust be timely filed by five (5) percent or flfty (50) of the electors of the Town, whichever number is less**. as determined by the latest official registry lists of the Registrars of Voters. The petition must also conform with the requirements of Connecticut General Statutes section 7-9, except as provided herein and be signed in ink requesting that such ordinance be submitted to the voters in a special referendum.

3 The Town Clerk shall within seven (7) days of receipt of anv such petition, certify to the Board of Selectmen whether the petition included a sufficient number of valid signatures and was legally consistent with the other requirements of this provision. **If it is not legally sufficient in every way,** the Town Clerk shall so inform **the Selectmen who shall declare the petition invalid** and the ordinance shall take effect on the forty-fifth (45) day following approval of the Board of Selectmen.

Significance: The BOS can repeal, change, or enact all ordinances and amendments **without a Town Meeting Vote.** If voters disagree, the **only option is to "petition"** for a change. The **petition process is not simple!** Fill out the appropriate form(s), obtain signatures from residents (5% or 50), and file the petition with the Town Clerk within 20 days of the date of the mailer. If anything at all is missing, the BOS can throw it out.

4. If the petition contains sufficient valid signatures and is otherwise legally sufficient, the effective date of the ordinance shall be set aside and the Selectmen shall, in cooperation with the Office of the Secretary of the State and State law. schedule a special referendum to be conducted simultaneously with the election regularly scheduled to be held on the first Tuesday after the first Monday in the month of November or with the next regularly scheduled referendum immediately following validation of any such petition.

5. The ordinance shall stand approved by the referendum unless a majority of those electors voting shall have voted in favor of repealing such ordinance, provided however, that at least ten (10) percent of the registered voters of the Town shall have voted on the matter. Any ordinance not so repealed shall take effect on the day following the referendum.

Significance: at **least 10% of residents MUST VOTE** on the ordinance at referendum for it to fail. The referendum would be held at the next regularly scheduled election or referendum. It would not be a special referendum solely for the petition of the ordinance. **Currently the number of registered voters in Andover is 2,704** so, if the next regularly scheduled event was a budget referendum, **a minimum of 270 people would have to vote.** If only 100 show up, the ordinance would take effect the next day.

Section 303. Annual Town Budget Meeting
The Annual Town Budget Meeting for the consideration of the budget shall be held ~~on one of the first ten business days in May~~ in the second week of April in each year. The adoption of the budget shall be pursuant to the provisions of Section 803 of the Charter.

Section 304. Special Town Meetings
Providing that all other procedures and/or prerequisites, financial and otherwise, as delineated in this Charter have been met, Special Town Meetings shall be called by the Board of Selectmen and shall follow Section 302 of this Charter for consideration of the following items;

A. The issuance of bonds and all other forms of financing exceeding flftv thousand dollars ($50,000) in value, the terms of which are in excess of one (1) year,

Significance: the BOS may spend up to $50,000 per year!

B. Any supplemental appropriation which exceeds the ~~one half of one~~ percent ~~(0.5%)~~ (1.0%) limit set forth in Section 805B, excluding any bonds or notes issued subject to Section 810D.
Significance: increase appropriation without approval from 0.5% to 1.0%

Any supplemental appropriation which exceeds or is equal to 2.5% of the current year budget excluding the amount appropriated for the Region 8 Board of Education and approved by the Board of Finance shall go directly to referendum pursuant to Section 803 of this charter.

~~D. The creation, consolidation, modification or abolition of any permanent board, commission, department, or agency not otherwise provided for in this Charter, provided however, any newly created board, department, agency or commission shall come under the provisions contained in this Chaarter.~~
Significance: **Anything over 2.5% of the combined Town and Local BOE budget.**

E. Leases and/or lease options in excess of fiftv thousand dollars ($50,000.00) to which the Town, including the local Board of Education, is a party which involve a term or obligation in excess of one (1) year, excluding leases of personalty.

F. Any appropriation from the capital and non-recurring expense fund, not included in the annual budget, which exceeds one quarter of one percent (0.25%) of the budget, as specified in Section 805B;

Significance: If the town wants to lease or lease/option in excess of $50,000, it has to go to a Special Town Meeting. Again, enough voters must show up.

G. The ~~application for or~~ participation in any federal, state or private grant program in excess of $2,500, excluding the local and Regional Board of Education, which participation shall require the Town and/or the local Board of Education to contribute in excess of $25,000.00 any cash or provide any in kind participation to enter into any such grant programs;

H. The discontinuance or abandonment of Town roads.

~~I.~~ Such other matters or proposals as the Selectmen, in their discretion, shall deem of sufficient importance to be submitted to a Special Town Meeting ~~includling recommendations by the Selectmen for the adoption, modification, or repeal of any ordinance.~~

Sigificance: Refer back to section 301A, allowing BOS to enact, modify, or repeal any ordinance *without* town vote.

~~J. The approval, repeal or modification of any Town Ordinance when petitioned pursuant to the provision(s) of Section 305 of this Charter as amended, providing said Ordinance(s) are not inconsistent with any other provisions of this Charter, or with the GT General Statutes.~~

Section 305. Petitioned Town Meetings

This Section shall remain intact, except that any references to the repealed Charter Sections 304D and 304J shall be deleted.

Chapter IV. BOARD OF SELECTMEN

Section. 402 - General Powers and Duties

A. To enact, amend or repeal ~~minor~~ Ordinances providing they are not inconsistent with this Charter ~~and not inconsistent with Ordinances adopted at prior Town Meetings,~~ and not legally inconsistent with the General Statutes of the State of Connecticut.

Significance: BOS may change any ordinance major or minor ordinance. We do NOT have a definition for "minor ordinance."

~~B.~~ To ~~recommend~~ enact Ordinances ~~to the Town Meeting the creation, consolidation, modification or abolition of~~ creating, consolidating, modifying, or abolishing agencies, commissions, boards and authorities not otherwise provided for in this Chatter. ~~The Board of Selectmen may create any agency, commission, committee, board, authority or department for a non-renewable term not to exceed eighteen (18) months.~~

Significance: Refer back to 301A, BOS may enact/modify/repeal ordinances *without* town vote.

Section 404. Public Hearing on and Publication of Ordinances.

This Section shall remain intact, except that the phrase "not covered by Charter Section 105H" shall be deleted, and the final sentence of Section 404 shall be amended as follows: "Every ordinance, unless it shall specify a later date, shall become effective on the ~~twenty-first (21)~~ forty-fifth (45) day ~~after such publication~~ following its ~~final passage~~ enactment by the Board of Selectmen ~~except if overruled as provided in Section 409 of this Charter.~~

Significance: no town vote – all ordinances automatically enacted by the BOS (unless petitioned.)

Section 605. Terms of Office

Except as otherwise specifically provided for in this Charter, the terms of all Town Board members shall be for two years, and shall commence on the first Monday in July of ~~1999~~ 2025, and biennially thereafter. All Town Board members shall be eligible for reappointment and shall continue in office until a successor has been appointed and has qualified.

Chapter VII. ADMINISTRATIVE SERVICES

Section 701. General

At the very beginning of Section 701, delete "With the exception of 702(0). Town Clerk, which is an elected position," but the rest of Section 701 shall remain in place.

Section 702. Administrative Positions.

D. **Director of Health -** The Board of Selectmen shall appoint a Director of Health as mandated by the State of Connecticut. ~~The Director of Health is employed part time subject to all rules and provisions of his/her contract. The said officer~~

~~shall be compensated by stipend.~~

~~E.~~ **An Animal Control Officer-** The Board of Selectmen shall appoint an Animal Control Officer or contract with Animal Control Services. ~~The said officer shall be employed part time.~~

O. A Town Clerk - The Office of the Town Clerk shall have permanent status. Pursuant to the option set forth in General Statutes section 9-185, beginning with the November 2, 2027 election, the Town Clerk shall no longer be elected. Rather, on or after November 16, 2027, and every four (4) years thereafter, the Board of Selectmen most recently elected in the November municipal election shall, on or after two weeks following the date of their election. by a minimum of three votes appoint a qualified person to be the Town Clerk to work in that capacity beginning on January 2 of the New Year for a term of four (4} years1 subject to the requirements of Chapter 92 of the Genera, Statutes, as amended, regarding "Town Clerks,"

Significance: Refer to page 2 – elected vs appointed.

CHAPTER VIII - FINANCE AND TAXATION
Section 802. Duties on the Budget

A. (ALL NEW). No later than October 15th , the Board of Finance shall confer with the Board of Selectmen and the Board of Education to discuss the goals and objectives for the upcoming budget. The Board of Finance may suggest a target for expenditures for both the General Government and Board of Education budgets; however, the target shall not be binding with respect to budget submittals.

Significance: Allow Town Budget to be voted on at the same time as RHAM

B. **Agency and Department heads (Section 802A in the current Charter)**
~~At least one hundred twenty (120) days before the end of the Fiscal Year~~
At least one-hundred fifty (150) days before the end of the fiscal Year, the head of each department, office or agency of the Town, supported wholly or in part by Town funds, except the Regional Board of Education and the local Board of Education. shall file with the ~~Board of Finance~~ Town Administrator a detailed estimate of expenditures to be made by that department, office or agency and the revenues other than property taxes, to be collected thereby in the ensuing Fiscal Year. Such estimates shall be accompanied by a statement setting forth the services, activities and work accomplished during the current year and planned for accomplishment for the ensuing Fiscal Year. The Local Board of Education budget must be submitted to the Board of Finance by February 15th.

Significance: Rather than boards giving their budget to the BOF for review, they will be given to the Town Manager. Why? This is a function of the BOF.

C. (**ALL NEW**) Duties of the Town AdministratoL
The Town Administrator shall review the budget estimates. Upon completion of the review and not later that one-hundred twenty 120) days prior to the end of the Fiscal Year, the Town Administrator shall present to the Board of Selectmen and Board of Finance a proposed budget. In preparing the proposed budget, the Town Administrator mav comment and make recommendations on the budget requests made by various departments, offices and agencies.

Question: why has this changed from the BOF?

D. (ALL NEW) There shall be budget review meetings in March which shall be ioint meetings of the Board of Selectmen and the Board of Finance. A quorum of at !east one of the two Boards is required to conduct business.

Question: If the Town Manager would be responsible for reviewing the budgets, why is the Town Manager not included in these meetings?

E. Duties of the Board of Finance (formerly Section 802B)

The Board of Finance shall review the budget estimates with the heads of all Town supported departments, offices, and agencies as needed.....**(some text omitted)**
The Board of Finance shall include the estimated budget request of the Regional School District No. 8 Board of Education in their recommended budget.

Question: Why is the Town Manager reviewing budgets first? Does this slow or impede the process (802B).

(E.1) Upon completion of the review and not later than ~~sixty days (6O) days~~ (85) days prior to the end of the Fiscal Year, the Board of Finance shall hold a Public Hearing on their recommended budget. ~~The Board of Finance shall hold a public hearing; as provided for in Section 802c of this Charter, on the proposed budget.~~

Section 803. The Annual Town Budget Meeting and Referendum
A. The Annual Town Budget Meeting shall be held ~~on one of the first ten business days of May.~~ in the second week of April
~~B. If a quorum as defined in section 302 of this Charter is present, then the meeting may~~
~~proceed to adopt or reject the budget. Prior to taking a vote to adopt or reject the budget,~~ The Town Meeting may make amendments to the proposed budget, provided, however, that the Town Meeting shall only have the power to reduce or modify, but not increase the budget or any portion thereof. The Town Meeting may not alter any specific items contained in the budget proposed by the local Board of Education. ~~If the budget is rejected, the Board of Finance shall review the rejected budget and present the same or a revised budget to a subsequent Town Meeting on the same day of the next following week~~. ~~If the budget is approved~~, the Town Meeting shall adjourn to a referendum to be held on the Tuesday following the first Monday in May. ~~It shall be put to a referendum on the second following Tuesday~~. Voting by absentee ballot at the referendum is allowed.

~~C. This subsection, 8Q3C, shall be deleted in its entirety by the Charter Revision of 2024.~~

D. I~~f a quorum is present at the Succeeding Town Meeting on the rejected budget, the Town Meeting may proceed to proceed. If a quorum is not present, the budget shall be put to a referendum on the Tuesday following the next Monday. This same adoption cycle shall be followed if any budget is rejected at Town Meeting or referendum until a budget is finally adopted.~~
If the budget is defeated at a first referendum ~~or for a second time at town meeting~~ the budget will be bifurcated into separate votes on the Town Budget and on the local Board of Education Budget individually, and the process shall begin again with the Board of Finance as set forth in Section ~~803c~~ 8O2E, above, and continue until each bifurcated budget is passed.

The Board of Finance shall review any rejected budget and present ~~for review and discussion only,~~ the same or revised budget(s)~~ to a subsequent Town Meeting held exactly one week after the day of the referendum at which the budget was rejected, and~~ the next referendum which will be held exactly two weeks later.
If only one of the two bifurcated budgets is passed at referendum, it is final and may be implemented for the new Fiscal Year, but this process must continue for any failed budget until it is passed.

E. After the final adoption of the budget at referendum, and with consideration of external budgeting factors-including state appropriation(s) and/or the Region Eight (8) Board of Education, the Board of Finance shall meet as soon as possible to set the mill rate for the upcoming Fiscal Year.

Section 805. Supplemental Appropriations.
B.Duties of the Board of Finance - - - -

The Board of Finance shall be empowered to make supplemental appropriations up to and including an amount that cumulatively is equal to ~~one half of one percent~~ one percent (1%) approved by the Board of Finance. Those which exceed the cumulative ~~one half of one~~ one percent (1%} of the current year budget, excluding the amount appropriated for the Regional School District, shall be submitted to a Special Town Meeting pursuant to the provisions of Section 3O4B of this Charter. ~~and if approved, will *be* sent to referendum pursuant to Section 803 of this Charter.~~

Significance: Increase amount the BOF may spend before approval from Town Meeting Vote.

Any supplemental appropriation which exceeds or is equal to *25%* or $200,000.00, whichever is greater, of the current year's budget, excluding the amount appropriated for the Region 8 Board of Education, approved by the Board of Finance shall go directly to referendum pursuant to Section 803 of this Charter.

CHAPTER X -TRANSITION AND MISCELLANEOUS PROVISIONS
Section 1003 • Conflicts of Interest

(This Section shall remain intact, except that any reference to Section 105K shall be changed to 105J.)

Section 1008. Review and Amendment of Charter.

Add a second paragraph to this Section 1008 as follows:

If after any such review. the Board of Selectmen does vote to appoint a Charter Revision Commission, the Board shall give anv such Commission a minimum of six (6) months to submit their draft report to the Board.

Section 1010. Resignations.

This section shall remain in place except that the sentence requiring that ~~"Said resignation shall become effective upon acceptance by a vote of the Board of Selectmen,~~" is unnecessary and shall be deleted from Section 1010.

Section 1011. Effective Date

This Charter shall become effective upon the approval of a majority of the electors voting at an election on ~~November 8, 2016~~ November 5, 2024 in accordance with the provisions of Chapter 99 of the General Statutes, as amended, provided, however, that no new provision of this revised Charter shall be implemented until July 1, 2025, with the exception of any revisions enacted by the electors on November 5, 2024 in Chapter VllI FINANCE AND TAXATION, and Charter Section 203C, whkh may be implemented immediately thereafter.

Sections 1012, 1013 and 1014. Transitional-

These three sections were all transitional at previous times, but are no longer relevant and necessary and are therefore deleted in their entirety. They are preserved in the vault of the Town Clerk as all former versions of the Town Charter are carefully kept and preserved and may be reviewed there.